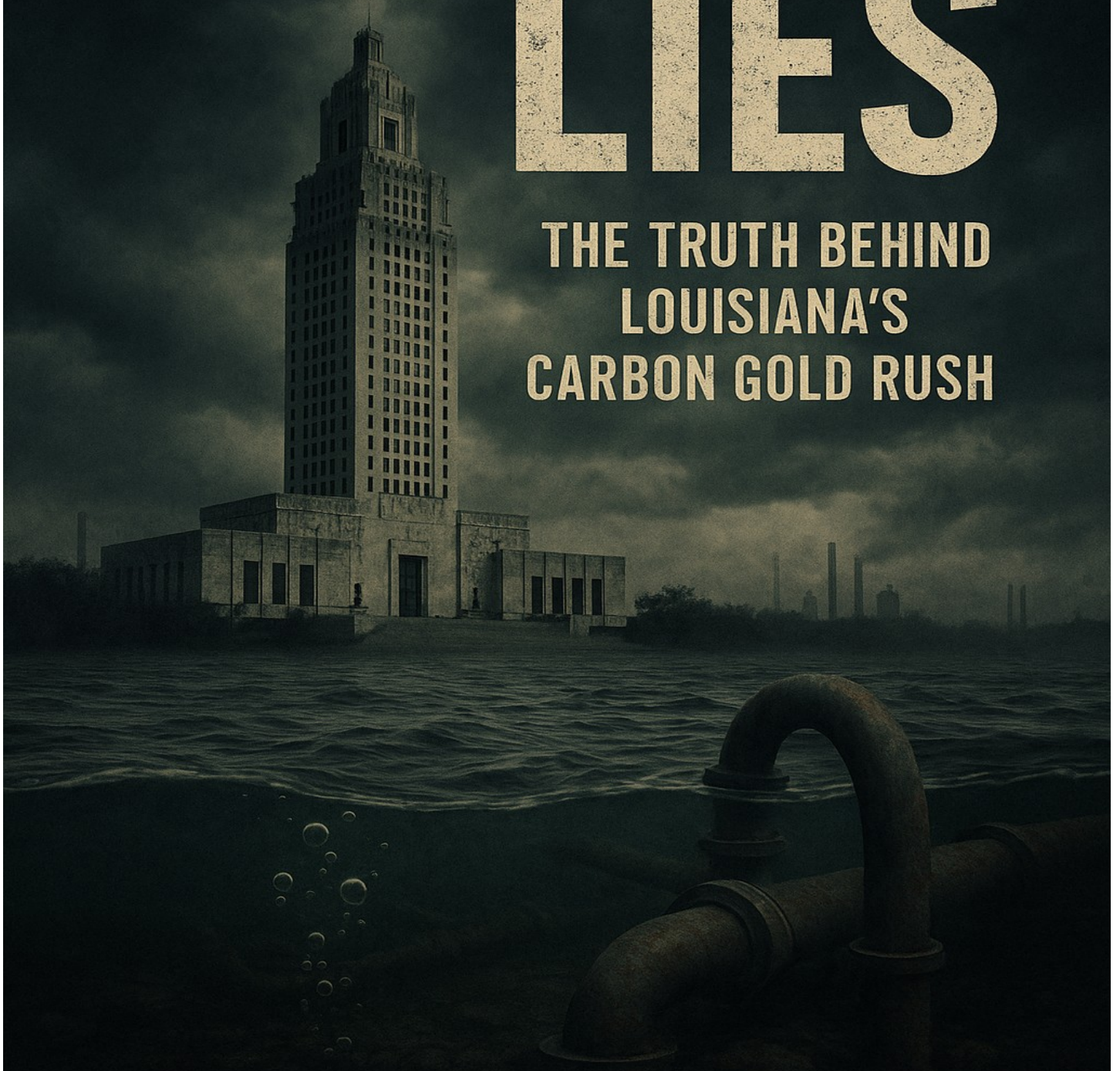


BURIED IN LIES

THE TRUTH BEHIND
LOUISIANA'S
CARBON GOLD RUSH



BURIED IN LIES

The Truth Behind Louisiana's Carbon Gold Rush

(Author / Organization name here — we can insert yours)

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Section 1 — The Global Framing: Carbon Capture's False Promise

Carbon capture has been promoted as the planet's salvation — but it is a lifeline for the oil industry.

Across the globe, carbon capture and storage (CCS) has been heralded as the technological fix for climate change. High-level climate frameworks — including the Paris Agreement [1][2][3] and the European Green Deal — embed carbon capture as a tool in the race to zero emissions. Yet neither framework mandates it as law; instead, they offer it as an aspiration, a policy lever that can be leveraged if circumstances align.¹²

The Paris Agreement [1][2][3], adopted by nearly 200 nations in 2015, commits signatories to hold global warming “well below 2 °C” with efforts to limit it to 1.5 °C compared to pre-industrial levels. However, it does not require member countries to deploy carbon capture. Its policies — Nationally Determined Contributions and long-term low-emission planning — function through voluntary commitments and review cycles, not through enforceable mandates. Article 6 allows for carbon trading and credits, including those generated by carbon capture, turning it into a flexible tool within broader climate strategies.³⁴⁵

Likewise, the European Green Deal, launched in 2019, sets the European Union on a trajectory toward climate neutrality by 2050 and a 55 percent reduction in greenhouse gas emissions by 2030 compared to 1990. While it champions carbon capture and utilization as a decarbonization technology for hard-to-abate industries like cement, steel, and chemical production, it also stops short of legally requiring deployment. The European Commission's Industrial Carbon Management Strategy [4][5][6] (February 2024) lays out actions to build a single market for CO₂ — transport,

networks and storage — but again treats CCS as an option within compliance systems rather than a universal mandate.⁶⁷

In short, the Paris Agreement [1][2][3] and European Green Deal frame carbon capture as a hopeful instrument of decarbonization — an aspiration — not a binding obligation. This ambiguity has provided a cover: governments lean on it as climate leadership while preserving fossil fuels.

The Intergovernmental Panel on Climate Change (IPCC [7][8][9]) itself has upheld this illusion because many of its mitigation pathways rely on large-scale carbon capture later to balance emissions — postponing hard cuts today.⁸

Within the United States, political leadership has further entrenched CCS as the “official path,” even though it’s not a climate solution — it’s a subsidy machine.

- Al Gore, long a climate figurehead, championed international climate architecture and helped mainstream offsets/credits; even as he has warned against pretending capture technology is already commercially solved, the policy scaffolding he advanced enabled the market architecture CCS now taps.⁹
- Barack Obama scaled federal CCS support (from DOE programs to the policy framework later used to enhance the 45Q [29][30][31] tax credit).¹⁰
- Joe Biden cemented CCS with unprecedented subsidies (via the 2022 climate law and follow-on programs), positioning it as central to net-zero by 2050.¹¹
- John Kerry, as Special Presidential Envoy for Climate, has repeatedly argued CCS is indispensable for reaching net-zero — even as he acknowledges economics and deployment remain uncertain.¹²

Beyond governments, a dense network of NGOs, law/lobby firms, and industry coalitions has normalized CCS as “responsible” policy:

- Van Ness Feldman (a powerhouse energy & climate law/policy firm) markets CCS funding navigation and says it has helped clients secure over \$3 billion in federal support
- Carbon Utilization Research Council and the Carbon Capture Coalition lobby for 45Q [29][30][31] expansion and a national carbon-management build-out
- Ministerial Carbon Sequestration Leadership Forum
- Global CCS Institute coordinates international uptake and messaging.

These groups — alongside GTI Energy (whose gasification lineage underpins projects we examine later) — will reappear when this story descends from global policy to Louisiana’s ground truth.¹³¹⁴¹⁵

In Europe today, named leaders and governments are actively pushing CCS as part of industrial decarbonization:

- Ursula von der Leyen’s Commission adopted the 2024 Industrial Carbon Management Strategy [4][5][6]
- Germany’s Economy Minister Robert Habeck secured Cabinet approval to allow CO₂ transport and offshore storage under German law
- France has released a national CCUS strategy affirming CCS for hard-to-abate sectors
- United Kingdom government has committed ~£20 billion in long-term support for CCUS clusters (HyNet and the East Coast Cluster)
- Norway’s state-backed Longship/Northern Lights now injects CO₂ offshore in the North Sea

These moves are sold as competitiveness and “strategic autonomy,” but they also create demand signals and regulatory lanes for private projects that will seek storage under communities like ours.¹⁶¹⁷¹⁸¹⁹²⁰

Wall Street has noticed. BlackRock [10][11], the world’s largest asset manager, has moved billions into carbon management — investing \$550 million (on behalf of clients) into Occidental’s “Stratos” direct-air-capture joint venture in Texas, and more recently taking a major stake (via Global Infrastructure Partners) in Eni [12]’s European CCS business. These are pitched as “infrastructure-like” assets with long-dated, policy-backed revenues. Follow the money and you see the outline of a new subsidy-anchored asset class, not a climate fix.²¹²²²³

Even more deceptive is the way carbon credits are used to legitimize this scheme. Polluting companies are not cutting emissions; they are simply investing in carbon capture outfits like Direct Air Capture [24][25][26] developers claiming the credits against their own pollution. On paper, their “carbon footprint” shrinks — but in reality, the smokestacks keep burning. Louisiana projects are not about protecting our land, air, and water. They are about manufacturing tradable credits for Wall Street and global markets, letting corporations buy their way to “net zero” while continuing business as usual

The oil industry has known this playbook for decades. As early as the 1950s, petroleum engineers experimented with injecting carbon dioxide underground to squeeze more crude from aging wells. In 1972, the first commercial Enhanced Oil Recovery [15][16] (EOR) project launched in Scurry County, Texas. It was never about reducing emissions — it was about extracting more hydrocarbons. Today, over 80 percent of captured carbon dioxide in the United States is still used to extract more oil, not to cut emissions.²⁴

Projects once lauded as proof remain cautionary tales. Norway's Sleipner [13][14] showed CO₂ migrating into unexpected layers above the target formation; in Illinois, the Archer Daniels Midland Decatur [22][23] project triggered backlash and new state law banning sequestration near the Mahomet Aquifer; and in Satartia [17][18][19][20], Mississippi, a Denbury CO₂ pipeline rupture forced evacuations and sent 45 people to hospitals.²⁵²⁶²⁷

But these global failures are not distant warnings — they are already being enacted in Louisiana. Direct Air Capture [24][25][26] provider Heirloom Carbon Technologies has announced two mega-scale DAC plants — one at the Port of Caddo-Bossier in Shreveport and another near Lake Charles — that together will capture approximately 320,000 tonnes of CO₂ annually.²⁸ Meantime, global finance is fueling the push: BlackRock [10][11]'s Global Infrastructure Partners has acquired a nearly 50-percent ownership stake in Eni [12]'s CCUS unit, locking in private-sector backing for major carbon processing infrastructure for carbon credits.²⁹

These movers — Heirloom [24][25][26], BlackRock [10][11]/GIP [12], plus major firms like SunGas, Venture Global LNG, Magnolia, 1PointFive (Occidental), ExxonMobil, Denbury [17][18][19][20], and CapturePoint Energy — are not background actors. They are the architects of Carbon Alley, and their fingerprints are already on Louisiana's ground. We'll return to these names in later sections, where this global scam turns local.

This isn't climate leadership — it's a green façade. Tax dollars from one administration to the next flow into CCS, while fossil fuels keep flowing, communities pay the price, and pore space becomes the next frontier of corporate capture. Carbon capture is not salvation; it's a corporate survival tool dressed in climate garb.

Section 2 — CO₂: The Gas of Life, Not a Pollutant

Carbon dioxide (CO₂) has been demonized in policy debates, but in its natural state it is not a pollutant — it is the gas of life. At about 0.04 percent of Earth's atmosphere, CO₂ feeds plants through photosynthesis, moderates climate over geologic time, and cycles constantly through oceans, soils, and living organisms. Without it there is no plant growth, no food chain, and no human life.¹²

Earth's Carbon Cycle: Natural vs. Human Contributions

Every day the Earth exhales and inhales CO₂. Volcanoes, forest respiration, microbial decay, ocean upwelling, and wildfires release hundreds of billions of tons of carbon dioxide annually.³ These natural emissions are nearly balanced by natural sinks — primarily the oceans and the biosphere — so atmospheric concentrations remain stable over long periods.

Human activities disrupt this balance. Burning fossil fuels, producing cement, and clearing forests add roughly 40 billion metric tons of CO₂ to the atmosphere every year.⁴ This is small compared to the total flow of the natural cycle but large enough to upset the balance, pushing atmospheric concentrations from about 280 parts per million before the Industrial Revolution to over 420 parts per million today.⁵

Oceans: The Great Generator and Cleaner

The oceans are Earth's largest generator and sink of CO₂. They naturally release carbon dioxide through upwelling and decomposition of organic matter, and they absorb an estimated 25–30 percent of anthropogenic emissions each year.⁶⁷ Phytoplankton in the upper ocean layers use sunlight and CO₂ to

produce oxygen and organic matter, fueling marine food webs and sequestering carbon when they die and sink. This “biological pump” is one of the planet’s most powerful life-support systems.

Without the oceans’ uptake, CO₂ buildup in the atmosphere would be far faster and the greenhouse effect far stronger. But as humans emit more CO₂, ocean chemistry shifts — warming and acidification reduce its ability to act as a sink and threaten marine life.⁸

Climate Cycles of Cooling and Heating

Earth’s climate has never been static. Ice core records show natural oscillations of CO₂ and temperature over hundreds of thousands of years, tied to solar cycles, Earth’s orbit, and feedbacks between ice, ocean, and atmosphere.⁹ In these cycles, CO₂ concentrations moved between roughly 180 ppm in ice ages to 280 ppm in interglacials over thousands of years. By contrast, the current increase to 420+ ppm has occurred in just over a century — a rate far faster than most natural changes.¹⁰

Photosynthesis: CO₂ as the Foundation of Life

Plants, algae, and phytoplankton take in CO₂, water, and sunlight to create carbohydrates and release oxygen — photosynthesis. This process underpins the entire food chain and produces the oxygen we breathe.¹¹ In the fast carbon cycle, plants absorb CO₂, animals eat plants, and respiration returns CO₂ to the air. Over longer periods, some carbon is stored in soils, forests, and sediments.

Thus CO₂ in ambient air is not a toxin; it is the raw material for life. But balance matters: when humans emit faster than Earth can absorb, the atmospheric concentration rises; and when humans

compress and move CO₂ in industrial systems, it becomes something very different.

From “Gas of Life” to Industrial Hazard: What CCS Does to CO₂

Carbon capture and sequestration changes CO₂'s state and risk profile:

- Pressure & density: To transport CO₂, companies compress it to 1,200–2,200 psi, turning it into a supercritical fluid.¹²
- Asphyxiation hazard: When released, dense CO₂ clouds hug the ground and displace oxygen. People and animals can suffocate without warning, as the Satartia [17][18][19][20], Mississippi pipeline rupture showed.¹³
- Cryogenic burns: Rapid decompression flashes CO₂ to a frigid gas and dry ice near –100 °F, causing frostbite-like injuries to lungs and skin.¹⁴
- Corrosion and aquifer risk: Mixed with moisture it forms carbonic acid, corroding pipes and mobilizing metals underground — threatening aquifers.¹⁵
- Migration uncertainty: Once injected, CO₂ can move laterally or upward through faults or old wells. Norway's Sleipner [13][14] project and Illinois' ADM [22][23] Decatur project both documented unexpected migration or violations of permit boundaries.¹⁶¹⁷

When compressed CO₂ meets groundwater (why aquifers, farms, towns and cities should care)

When high-pressure, supercritical CO₂ escapes the wellbore or migrates out of a storage zone and contacts fresh groundwater, it dissolves rapidly and forms carbonic acid. That lowers pH, which can leach metals from aquifer sediments (iron, manganese, arsenic, lead) and dissolve cement or steel elements in well casings —potentially worsening the pathway.¹⁸¹⁹

Laboratory, field, and modeling studies show consistent mechanisms: acidified water accelerates mineral dissolution, mobilizes trace metals, and can change redox conditions, which in turn increases the solubility of redox-sensitive contaminants.²⁰ Recent reviews conclude that unintended CO₂ intrusion can degrade drinking-water quality, with impacts depending on local geology, groundwater flow, and how long CO₂ persists.²¹

Decatur [22][23], Illinois (ADM) as the cautionary case. In Decatur, EPA issued a Notice of Violation (Aug. 2024) alleging the Class VI operator allowed injected fluids to migrate into an unauthorized zone, failed to adequately monitor, and deviated from its emergency plan. In Aug. 2025 [33][34][35], EPA issued a final Administrative Order requiring corrective actions.²²²³²⁴ The regulatory takeaway is explicit: there is no guarantee that CO₂ or associated fluids will remain neatly inside modeled boundaries; continuous monitoring and enforceable remedies exist because leakage is a credible risk—with drinking-water protection at stake. Even large offshore projects (e.g., Sleipner [13][14]) have shown complex plume behavior that had to be tracked with intensive seismic surveys.²⁵²⁶²⁷

How this threatens property and mineral interests under your land

CO₂ storage uses the pore space (the microscopic voids in subsurface rock). In many states—often including Louisiana’s practical approach—pore space is treated as belonging to the surface estate, while the mineral estate remains dominant for producing oil and gas. But CCS introduces conflicts: pressure fronts and plumes may invade pore space under non-consenting tracts; pressure can interfere with hydrocarbon production; and injected CO₂ can trespass into zones where owners never agreed to storage.²⁸²⁹³⁰

Courts and legislatures are still drawing the lines. In North Dakota, the Supreme Court (2022) struck portions of a law that let operators use pore space without compensating surface owners—affirming owners’ rights to profit from pore-space use and seek damages for unauthorized migration.³¹³² Separate statutes there also vest pore space in surface owners and allow amalgamation (unitizing pore space with 60% consent), raising obvious takings and due-process issues now being litigated.³³³⁴

Legal scholarship flags the core collision plainly: CCS competes for the same pore space long used by oil & gas for produced-water disposal or EOR [15][16], producing stacked uses and potential subsurface trespass claims when CO₂ migrates beyond agreed boundaries.³⁵³⁶ DOE and academic reviews likewise note that absent clear compensation and consent frameworks, CCS can burden mineral operations and cloud title—especially in split-estate parishes.³⁷³⁸

What this means for a landowner, farmer, or a town on an aquifer:

- A CO₂ leak or out-of-zone migration can acidify your groundwater and mobilize metals, threatening domestic wells, irrigation, and municipal supplies.
- A storage project can occupy your pore space and pressure-shadow adjacent tracts—potentially interfering with oil & gas development and inviting trespass disputes unless protections are iron-clad.
- Regulators write monitoring and emergency plans because failures happen; Decatur [22][23] shows violations are enforceable after the fact—but prevention and property protections must be negotiated before a project advances.

Key takeaway: CO₂ in air is part of life’s cycle; CO₂ in a pipeline is a hazardous industrial fluid. Any discussion of carbon capture and sequestration must make this distinction clear, because policies,

safety standards, and property rights hinge on which form—and which risks—we're really talking about.

Section 3 — The U.S. Surge: Four Presidents, One Subsidy

CCS has never been a scientific breakthrough. It has always been a subsidy scheme.

From its beginning, CCS was not driven by climate concern but by politics. The carbon capture scam did not begin in Louisiana. It was created in Washington, D.C., and it was built step by step under four presidents, each one expanding the subsidies until carbon capture became federal law.

President George W. Bush opened the door. In 2005, Congress passed the Energy Policy Act, which quietly introduced the first version of the 45Q [29][30][31] tax credit. This credit gave oil and gas operators a subsidy for every ton of CO₂ they captured and stored underground. Alongside the credit, Bush's Department of Energy poured billions into "Clean Coal" research and CCS demonstration projects through its Office of Fossil Energy. This was sold as innovation, but the real purpose was to create a taxpayer-funded revenue stream for oil companies already experimenting with Enhanced Oil Recovery [15][16] (EOR) since the 1970s.¹²

Three years later, Bush signed the Emergency Economic Stabilization Act of 2008 — best known as the Wall Street bailout — which quietly nearly doubled the amount of CCS tax credits available, from \$1.65 billion to \$3.15 billion. This provision locked in even more subsidies for carbon capture projects, ensuring that

federal dollars continued flowing into industry pockets even as the financial system collapsed.³

President Barack Obama kept it alive and expanded it. In 2009, his American Recovery and Reinvestment Act directed more than \$3.4 billion to CCS projects. It also revived the FutureGen coal sequestration project, which later collapsed, but not before billions of tax dollars had been spent.⁴⁵ Obama's Department of Energy expanded the Regional Carbon Sequestration Partnerships, and his EPA began drafting the framework for long-term Class VI well regulation. This was also the era when groundwork was laid for an expansion of 45Q [29][30][31] — ensuring corporate subsidies would continue.

President Donald Trump supercharged it. In 2018, Trump signed the Bipartisan Budget Act, which dramatically raised the 45Q [29][30][31] credit to \$35 per ton for CO₂ used in oil recovery and \$50 per ton for CO₂ stored underground.⁶ For the first time, companies could lock in those credits for 12 years, creating guaranteed corporate revenue streams. This expansion was not partisan — Democrats and Republicans in both the House Ways & Means Committee and the Senate Energy & Natural Resources Committee supported it, showing how deep the influence of the Carbon Capture Coalition and its corporate funders (ExxonMobil, Occidental [10][11], Peabody, NRG, among others) had become.⁷

President Joe Biden cemented it. In 2022, the Inflation Reduction Act raised 45Q [29][30][31] to \$85 per ton for CO₂ stored underground and a staggering \$180 per ton for Direct Air Capture [24][25][26].⁸ His administration also funded CO₂ pipeline networks, streamlined Class VI well permitting, and in 2024 granted Louisiana primacy [27][28] over Class VI wells — putting industry-friendly state regulators in charge of approving injection projects.⁹ Biden's climate team, led by John Kerry, branded CCS as

“essential” to the U.S. pledge of net-zero by 2050, guaranteeing decades of subsidies whether the technology works or not.

The result is a bipartisan subsidy machine. From Bush to Biden, Washington built a law-backed pipeline of tax credits, grants, and legal authority to protect CCS. The Carbon Capture Coalition and its allies quietly ensured that subsidies flowed, while companies reaped the rewards.

The corporations cashed in.

- ExxonMobil promoted its Houston Ship Channel CCS hub.
- Occidental [10][11] and its subsidiary 1PointFive launched the Stratos DAC plant in Texas and applied for Class VI wells in Louisiana.
- Denbury [17][18][19][20] expanded its Gulf Coast CO₂ pipeline network.
- NRG took hundreds of millions for the failed Petra Nova coal-CCS project in Texas.
- SunGas Renewables tied its Louisiana gasification project to CCS, marketing “green methanol” to Europe.

Each of these companies leaned on the subsidies created in Washington, branding themselves as climate leaders while pocketing taxpayer money.

Section 4 — When CO₂ Strikes Back: Satartia & Sulphur

When carbon dioxide (CO₂) escapes, it does not drift away harmlessly. It hugs the ground and kills. It strikes back — and the communities in Satartia [17][18][19][20] Mississippi, Sulphur Louisiana [21], and beyond know firsthand.

Satartia [17][18][19][20], Mississippi, 2020. A Denbury CO₂ pipeline ruptured near the small town of Satartia. Within minutes, an invisible, heavy gas cloud swept through the area, displacing oxygen. Cars stalled because engines could not ignite in the oxygen-starved air. Residents collapsed on the roadside, gasping for breath. First responders rushed in, only to find themselves overcome. They described the scene as apocalyptic, more like a battlefield than a small American town.⁸

In the end, forty-five people were hospitalized and the town was forced to evacuate. Survivors described it as “a bomb that sucked the air from their lungs.” The federal Pipeline and Hazardous Materials Safety Administration (PHMSA [17][18][19][20]) later confirmed that the rupture was caused by corrosion and ground movement, warning that CO₂ pipelines pose unique risks — rapid decompression, invisible clouds, and asphyxiation.¹

This was not an accident. It was the inevitable outcome of forcing communities to live alongside pressurized CO₂ pipelines. Unlike natural gas leaks, CO₂ cannot be smelled, and unlike smoke, it does not rise — it sinks, displacing oxygen until nothing alive can breathe.

Sulphur, Louisiana. Louisiana has already tasted this danger. In 2023, ExxonMobil reported a leak of over 100,000 gallons of CO₂.²⁰ It did not make national headlines, but it underscored the fragility of Louisiana [21]’s aging infrastructure.

In 2024, another CO₂ leak struck close to home. In Sulphur, a pressurized CO₂ line released gas into the surrounding community, forcing evacuations. While no one died, residents reported nausea, dizziness, and fear as white vapor vented across fields.² PHMSA [17][18][19][20] documented the incident in its growing database

of CO₂ pipeline failures — more than a dozen have been reported in recent decades, many involving corrosion and equipment failure.³

PHMSA [17][18][19][20] has documented at least seventy-six CO₂ pipeline incidents in the United States since 2010, with Denbury responsible for many of them.²¹ Each new mile of CO₂ pipeline multiplies these risks. And yet Louisiana's legislature continues to open the floodgates.

These disasters show that carbon capture and storage (CCS) infrastructure is not safe. CO₂ may not be toxic in its natural state, but when compressed and transported through pipelines, it becomes dangerous:

- It displaces oxygen, suffocating anyone caught in its path.
- It flash-freezes upon release, dropping to temperatures near minus one-hundred degrees Fahrenheit, burning skin and lungs.⁴
- When mixed with water, it forms carbonic acid, corroding pipes and threatening aquifers.

These are not theoretical risks — they have already happened, and they will happen again as more pipelines and wells are built across Louisiana.

Denbury [17][18][19][20]'s Dangerous Track Record. The company behind the Satartia rupture has not just one, but a long history of CO₂ pipeline failures. Denbury accounts for a majority of reportable incidents — in the past decade it was tied to approximately twelve significant leaks, representing about eighty-one percent of all leaked volume among all operators and three of the five largest releases recorded by PHMSA.⁵ That alone should ring alarm bells as Louisiana positions itself as the next testbed for carbon infrastructure.

Nationwide Pattern of Danger. This is not just a regional problem. Across the country:

- A ruptured line in Wyoming prompted urgent warnings after soil temperatures plunged below minus one-hundred degrees, forming hazardous dry-ice fog.⁶
- In Texas, a rogue excavation ruptured a pressurized CO₂ line, sending a jet two hundred feet into the air and instantly flash-freezing surrounding asphalt in a wide radius.⁷
- In Decatur [22][23], Illinois, Archer Daniels Midland received a formal violation notice from the Environmental Protection Agency (EPA) for allowing injected fluids to migrate into unauthorized zones — violating its Class VI Underground Injection Control permit under the Safe Drinking Water Act. The company faces possible civil penalties and even permit revocation.⁸

Enforcement Fines Only Scratch the Surface. Federal enforcement has occasionally acted:

- Denbury [17][18][19][20] and its contractor were slapped with a proposed \$2.4 million fine by PHMSA after federal inspectors were obstructed during a 2024 inspection in Calcasieu Parish — one of the agency's largest penalties ever.⁹
- In Mississippi, Denbury [17][18][19][20] previously agreed to a \$3 million fine after the Satartia rupture.¹⁰
- Archer Daniels Midland's violations may result in an enforcement order — though they contend “no threat to public health or water.”¹¹

Yet these settlements hardly cover the damage caused— nor the fact that CO₂ corridors carrying huge volumes are moving forward unchecked.

This is not progress. It is peril. CCS pipelines are not climate solutions. They are weapons of mass asphyxiation, laid across the landscape in the name of corporate profit. The industry moves at breakneck speed, but where are the safeguards?

The ferocity of these physical risks — and the minimal financial recourse when things go wrong — show that Louisiana's embrace of carbon capture is not safeguarding futures — it's gambling with them.

Section 5 — Illinois: Water Over Subsidies

Illinois was promised safety, but got a cautionary tale.

Illinois has already shown the country what happens when carbon capture and storage (CCS) collides with water and community safety. The much-touted Archer Daniels Midland (ADM [22][23]) Decatur project was supposed to be proof that carbon sequestration could work. Instead, it became a case study in why water is worth more than subsidies.

ADM [22][23] is not just any company. It is one of the largest agricultural and ethanol producers in the world, with massive plants in Decatur, Illinois.¹ ADM entered the CCS arena because its ethanol operations generate vast amounts of carbon dioxide (CO₂) as a byproduct. By injecting that CO₂ underground, ADM could claim lucrative federal 45Q [29][30][31] tax credits designed for carbon capture.² But ADM was already heavily subsidized through the Farm Bill, which provides billions of dollars in corn subsidies and mandates ethanol blending into U.S. fuel supplies.³ In effect, ADM has been “double-dipping”: first collecting subsidies to grow and process corn into ethanol, then collecting more subsidies and

carbon credits for capturing the CO₂ its plants emit. This makes ADM less a climate hero than a corporation gaming multiple federal programs for profit.⁴

The project injected CO₂ into the sandstone beneath Decatur [22] [23], directly above the Mahomet Aquifer, which supplies drinking water for over 800,000 Illinois residents.⁵ Almost immediately, concerns were raised about wellbore integrity, seismic activity, and plume [13][14] migration. Federal inspectors later confirmed that injected fluids migrated into unauthorized zones — a violation of the facility's Class VI Underground Injection Control permit under the Safe Drinking Water Act.⁶ The Environmental Protection Agency (EPA) issued a violation notice in 2024, warning that ADM faced possible civil penalties and even permit revocation.⁷

The public backlash was fierce. Farmers and residents organized to protect the aquifer, arguing that no amount of federal subsidy was worth risking the state's most important water source. Illinois lawmakers were forced to act. In response, the legislature passed Senate Bill 1723, banning carbon dioxide sequestration near the Mahomet Aquifer.⁸ The decision sent a powerful message: when forced to choose between water security and corporate subsidies, Illinois chose water.

Yet the subsidies were enormous. ADM [22][23] received tens of millions in federal tax credits through the 45Q [29][30][31] program and Department of Energy grants, even as the project faced technical and legal setbacks.⁹ This mismatch — water at risk, subsidies flowing anyway — crystallizes the problem at the heart of CCS: public resources are sacrificed, while corporations walk away with taxpayer money.

The lesson for Louisiana could not be clearer. Illinois acted to protect its Mahomet Aquifer through law. Louisiana's Chicot

Aquifer, which supplies water for nearly one million residents in central and southwest Louisiana, is no less vital.¹⁰ If carbon capture projects are allowed to inject near or over this aquifer, contamination could destroy the single most important water source in the region. Just as Illinois passed Senate Bill 1723, Louisiana may one day be forced to take the same step — but by then, it could be too late.

Illinois' experience matters for Louisiana. Just like the Mahomet Aquifer, Louisiana's aquifers and rivers supply life to millions of people. Once contaminated, water cannot be reclaimed. And just like Illinois, Louisiana is being told that billions in subsidies justify the risks. Illinois said no. Will Louisiana have the courage to do the same?

Section 6 — South Dakota: Three Years That Rewrote the Rules (and Why Louisiana Should Care)

South Dakota just showed the country that citizens can flip a carbon-pipeline juggernaut—at the ballot box, in the docket, and in statute. In March 2025 [33][34][35], the state banned the use of eminent domain for CO₂ pipelines; a month later, regulators denied Summit Carbon Solutions' permit again. Now, North Dakota's attorney general is publicly mulling a Dormant Commerce Clause suit to knock down South Dakota's law—setting up a rare, state-vs-state fight over whether one legislature can refuse to take its people's land for a private pipeline.¹²³⁴

What changed on the ground (2023 → 2025 [33][34][35])

- Litigation backlash: Summit filed 232 lawsuits against landowners across SD/ND/IA—156 of them eminent-domain

cases in South Dakota alone. The blitz included 83 ED suits in two days (Apr 2023) and aggressive survey actions that enraged rural communities.⁵⁶

- Primaries as referendum: In June 2024, at least 14 Republican legislators lost primaries amid a property-rights revolt, with the CO₂ corridor a top wedge issue—resetting the caucus ahead of 2025 [33][34][35].⁷
- Voters slap back at “split-the-difference” policy: In Nov 2024, voters repealed Referred Law 21 (which had tried to thread a middle path on pipelines), clearing the way for a cleaner fix in 2025 [33][34][35].⁸
- The statutory kill switch: In 2025 [33][34][35], lawmakers passed (and the governor signed) HB 1052—a first-in-the-nation ban on using eminent domain for CO₂ pipelines. This instantly stripped the project of condemnation leverage and forced entirely voluntary easements.⁹
- Permit denial (twice): The PUC rejected Summit’s route again on Apr 22, 2025 [33][34][35] (2-1 vote), after a years-long docket (HP24-001) that documents the finding and the Apr 25 Order Denying Application. Summit vowed to refile with a “reduced scope.”¹⁰

Bold Nebraska’s receipts (organizing intel & corridor pressure)

Bold Nebraska/Bold Alliance helped knit together a multi-state opposition architecture, pushing landowner legal co-ops, county actions, and constant public-records tracking. Their channels provide granular, contemporaneous documentation you can cite:¹¹

- “Know Your Rights” landowner guide (updated Jan 2025 [33][34][35]): easements, county setbacks, risk primers, route maps.¹²

- FB: landowner refusals & easement pressure—posts chronicling widespread refusals along Summit’s “Phase 2” and the ND storage dependency (“Burgum says ND permitted 100+ years of storage”).¹³
- Bold’s mission page: why they target “eminent domain for private gain” and how local-control strategies travel between states (Keystone XL → CO₂).¹⁴

Louisiana’s Grassroots Mirror: Local Groups Following Bold Nebraska’s Playbook

In Louisiana, local groups like **Louisiana CO₂ Alliance**, **CO₂ Chronicles**, **Save My Louisiana**, **The People of Louisiana Against CO₂**, **Fight Carbon Capture**, and others are already following the Bold Nebraska model.¹⁵¹⁶¹⁷ For example:

- Louisiana CO₂ Alliance, composed of police jurors and elected officials in Allen, Vernon, Jefferson Davis, and Beauregard Parishes, is allocating parish funds for environmental risk assessments, hiring lobbying firms, and engaging in legislative committee testimony.¹⁸
- At community meetings in Allen Parish and Lake Maurepas, residents have demanded transparency, opposed eminent domain expansions, warned about risks to aquifers, and challenged bills they see as allowing expropriation without notice.¹⁹
- CO₂ Chronicles has served as an investigative resource, exposing trade-secret claims over test well locations, warning about how bills are being fast-tracked, and coordinating coverage of public hearings so citizens know what’s at stake.²⁰

If these coalitions continue to build, document, vote, and show up, Louisiana could see outcomes similar to South Dakota, Illinois, Iowa, or Nebraska: bans or deep restrictions on eminent domain for CO₂ projects.

North Dakota's counter-move: threaten to sue a neighbor

On Sept 19, 2025 [33][34][35], North Dakota AG Drew Wrigley said he's "examining all possibilities" to challenge South Dakota's CO₂ eminent-domain ban, calling it a "hostile act" that burdens interstate commerce. Coverage in the North Dakota Monitor, local TV, and South Dakota Searchlight all quote Wrigley's on-air remarks and summarize the legal posture.²¹²²

What a case would argue:

- Dormant Commerce Clause theory: South Dakota's law allegedly blocks interstate CO₂ transport by forbidding eminent domain for a pipeline segment needed to reach North Dakota's storage hub—thus placing an undue burden on interstate commerce.²³
- South Dakota's response: The state is regulating in-state land-acquisition methods (a classic exercise of state police power), not discriminating against out-of-state actors. The law bars all CO₂ pipelines from using condemnation equally, leaving voluntary easements intact. Early regional analysis: ND faces an uphill climb.²⁴

Context from North Dakota courts: Meanwhile, ND's own "amalgamation" (forced pore-space unitization at 60%) faces a state-constitutional challenge that the ND Supreme Court recently sent back to the trial court—proof that property-rights litigation is tightening around CO₂ storage in ND, too.²⁵

Why this is a blueprint for Louisiana (and a warning)

1. Target the power, not the project. SD didn't win by parsing pipeline wall thickness; it removed the power of condemnation for CO₂ pipelines (HB 1052). Louisiana can craft a CO₂-specific bar on expropriation, restoring Article I, §4's promise that takings be strictly for public use—not a private tax-credit corridor.²⁶
2. Elections move statutes. SD's 2024 primaries changed the caucus, and the caucus changed the law. Publish Louisiana's SB 353 (2020) roll calls in every district; make expropriation for CO₂ the first question at every forum.²⁷
3. Use the docket to buy time—and build record. SD's HP24-001 filings and the Apr 25, 2025 [33][34][35] Order gave citizens findings to cite back at legislators and in court. Louisiana's Class VI primacy [27][28] compresses windows; copying SD's filing cadence (expert declarations, ordinance conflicts, routing alternatives) is essential.²⁸
4. Expect the "Commerce Clause" bluff. A neutral, across-the-board bar on how property is taken in-state is different from a discriminatory embargo on what crosses state lines. SD's posture is stronger than pipeline-specific local bans that conflict with state primacy; that's the point.²⁹

Timeline (pull-quote ready)

- Apr 2023: Summit files 83 eminent-domain suits in 2 days; total SD ED suits later reaches 156.³⁰
- June 2024: 14+ GOP incumbents lose primaries; pipelines/property rights dominate.³¹
- Nov 2024: Voters repeal Referred Law 21.³²
- Mar 6, 2025 [33][34][35]: Gov. Larry Rhoden signs HB 1052—no eminent domain for CO₂ pipelines.³³

- Apr 22–25, 2025 [33][34][35]: PUC denies Summit’s app (HP24-001); Order Denying Application issued Apr 25.³⁴
- Mar–Apr 2025 [33][34][35]: Summit moves to pause/dismiss pending SD lawsuits.³⁵
- Sept 19, 2025 [33][34][35]: ND AG Wrigley threatens litigation, calls SD’s law a “hostile act” to commerce.³⁶

Pulling a Louisiana thread: Article I, §4 vs. SB 353 (2020)

Louisiana’s SB 353 (Act 61 of 2020) opened the door to CO₂ storage unitization/expropriation and, alongside 2024–25 follow-ons, handed private developers the state’s heaviest tools. South Dakota’s counterexample shows a clear alternative: categorically bar expropriation for CO₂ pipelines (and consider pore-space carve-outs), forcing voluntary servitudes rather than coercive takings—exactly the posture most consistent with Article I, §4’s plain text and purpose. (You already have Louisiana bill/roll-call cites in Section 6–7; we can cross-reference them here.)³⁷

Notes on sources & what we pulled from Bold Nebraska

- Bold Nebraska FB posts were used for contemporaneous snapshots of landowner refusals and route dynamics; they’re best as sidebars or callouts alongside your primary-source news/legal citations.³⁸
- The Bold Alliance “Know Your Rights” guide (updated Jan 2025 [33][34][35]) is a solid how-to appendix for parish trainings.³⁹

Section 7 — States at a Crossroads

While some states are waking up, Louisiana is doubling down.

This chapter contrasts states that have moved to restrict or slow CCS with states racing ahead, then frames how federal subsidies distort local decision-making. We organize it in three lenses — Moratoria & Bans, Local Control vs. Preemption, and Follow the Money — keeping the prose sharp and non-technical but adding factual detail so readers understand each point.

Moratoria & Bans (Snapshots with Context)

- **Illinois — Water First:** After the Archer Daniels Midland (ADM [22] [23]) Decatur CCS project violated its Class VI permit by allowing injected fluids to migrate outside the approved formation, Illinois passed SB 1723 (2023). This law prohibits CO₂ sequestration near the Mahomet Aquifer, which supplies drinking water to over 800,000 residents. This shows a state can prioritise water security over subsidies.
- **Lake Maurepas (Louisiana) — Local Power Overridden:** Livingston Parish attempted to block injection beneath Lake Maurepas to protect fisheries and tourism. However, because Louisiana accepted Class VI primacy [27][28] in January 2024, the local ordinance was pre-empted. This reveals the limits of parish power once Baton Rouge has legislated a pathway.
- **South Dakota — Citizen Pushback:** Counties enacted setbacks and temporary moratoria on Summit Carbon Solutions and Navigator CO₂ pipeline routes. Voter recalls removed commissioners who supported eminent-domain powers. New legislators advanced bills to tighten survey and condemnation rights. Litigation over landowner rights continues. This illustrates how citizen organising can shift the political landscape.
- **Iowa — County Ordinances and Litigation:** Several counties passed ordinances imposing larger setbacks and stricter safety

requirements on CO₂ pipelines. Developers sued the counties, and cases are still pending in state courts, illustrating the tug-of-war between local ordinances and corporate pre-emption.

- **Nebraska (Bold Nebraska Model):** The Bold Nebraska network retooled its Keystone XL playbook to fight CO₂ pipelines: landowner trainings, corridor monitoring, and legal support against survey/condemnation orders. It shows how organised citizen action can change the political landscape.

- **Louisiana Contrast:** With Class VI primacy [27][28] and Acts 458/672/415 in place, Louisiana parishes face a statutory regime where state law pre-empts parish vetoes. Local hearings may influence conditions but not halt projects.

- **Allen Parish (Louisiana) — Local Ordinance Challenged:** In mid-2025 [33][34][35] the Allen Parish Police Jury passed an ordinance requiring parish permits for CO₂ injection wells in addition to state permits. ExxonMobil sued Allen Parish in state court arguing the ordinance exceeded local authority. In August 2025 the Police Jury rescinded the ordinance under pressure of the lawsuit. This is a real-time example of a parish trying to regulate CCS and being legally challenged by a major company.

Local Control vs. Preemption (Why It Matters)

- **Class VI Primacy [27][28]:** EPA's approval (Jan. 5, 2024) shifted underground injection permit power from EPA to Louisiana's Department of Energy & Natural Resources. This shortens notice windows and allows state regulators — who are closer to industry — to issue approvals.

- **Expedited Review:** Act 458 [33][34][35] (HB 244, 2025) creates an expedited permitting program for CO₂ storage, effective Oct. 1,

2025. Companies will be able to pay fees to shorten environmental reviews that once took years.

- **Expropriation & CPCNs:** Act 672 [32][36] (HB 492, 2024) clarifies eminent domain for CO₂ pipelines and gives developers a certificate-of-public-convenience pathway, treating them like quasi-utilities. Reservoir rights themselves still move by unitisation rather than direct expropriation, splitting the process. In plain language, a CPCN is a state-issued permit historically used for electric lines or gas pipelines that gives a private company the power to condemn easements — now extended to CO₂ pipelines.
- **Damage Caps:** Act 415 (HB 169, 2024) caps noneconomic damages in CCS-related actions at \$250,000 per person (\$500,000 for severe injuries), shielding operators from full liability.

Implication for Louisiana: With Class VI primacy [27][28] and expedited timelines, the venue that matters most is increasingly upstream — statute, rulemaking, and docket design — not just a parish meeting. By the time a police jury votes on an abatement, the pipeline of permits and subsidies is already in place. This shift compresses opportunities for citizen comment and increases the importance of state-level lawmaking.

Follow the Money — Louisiana Examples with Numbers and Explanation

Federal subsidies (45Q [29][30][31] credits) pay \$85 per ton of CO₂ stored underground and \$180 per ton for Direct Air Capture [24] [25][26]. These credits run for 12 years and can reset if facilities are modified.

- **CapturePoint — CENLA Hub (Rapides & Vernon):** Two Class VI permits, each allowing up to six wells at roughly 1 Mt/yr per well;

hub capacity about 7.5 Mt/yr. At \$85/t: about \$637.5M/year ($\approx$ \$53.1M/month) in federal credits hub-wide; \$85M/year ($\approx$ \$7.1M/month) per 1 Mt/yr well. CapturePoint has also promoted a “Community Investment Fund” for Vernon Parish at about \$10M/year, which is less than one high-throughput well’s monthly credit intake.

- **SunGas — Beaver Lake (Rapides):** Public materials state ~1 Mt/yr of biogenic CO₂ will be permanently removed via sequestration. At \$85/t: \$85M/year ($\approx$ \$7.1M/month). SunGas markets this as “green methanol” for export but the captured CO₂ credits flow back to the developer.

- **Cleco — Diamond Vault (Rapides):** Cleco’s FEED materials target ~95% capture from its MAD-3 unit. If 3.5 Mt/yr stored: \$297.5M/year ($\approx$ \$24.8M/month) in credits.

- **1PointFive — Pelican Hub (Livingston & St. Helena):** 25-year offtake ~2.3 Mt/yr; at \$85/t: \$195.5M/year ($\approx$ \$16.3M/month). The JV announced with Enbridge frames eventual hub scale up to 20 Mt/yr.

- **Magnolia Hub (Allen):** Public/DOE summaries indicate ~4 Mt/yr initial, expandable to ~10 Mt/yr; at 4 Mt/yr: \$340M/year ($\approx$ \$28.3M/month); at 10 Mt/yr: \$850M/year ($\approx$ \$70.8M/month).

Why this matters: If a parish is offered \$10M/year — about \$0.83M/month — while a single high-throughput well can clear \$7–10M/month in federal credits and a hub can clear \$25–50M/month or more, local governments are accepting pennies on the dollar. Once pore space is unitised or condemned, there is no further negotiation. Companies secure 12 years of 45Q [29][30][31] and potentially reset eligibility with modifications, while landowners lose long-term leverage over their subsurface rights and mineral estate.

Section 8 — States at a Crossroads (Revenue Streams)

Moratoria & Bans (Snapshots)

- **Illinois:** Banned CO₂ sequestration near the Mahomet Aquifer (see Section 4) — a water-first rule that puts aquifer safety above corporate storage projects.
- **Lake Maurepas (Louisiana):** Parish-level pushback sought to block injection beneath the lake; state primacy and preemption undercut the local ordinance (see 7.6), revealing the limits of parish power once Baton Rouge has legislated a pathway.
- **Upper Midwest fights:** Multiple states (Iowa, South Dakota, North Dakota counties) have enacted county-level setbacks or temporary halts on CO₂ pipelines; developers pivot between litigation and legislative fixes to keep routes alive.

Local Control vs. Preemption

- Pattern: Local officials shoulder political risk while state and federal frameworks preempt their veto power. Public notice windows are short; technical filings are voluminous; and

“certificates of public convenience and necessity” (CPCNs) convert private projects into quasiutilities with corridor powers. In plain language, a CPCN [32][36] is a state-issued permit historically used for electric lines or gas pipelines that gives a private company the power to condemn easements — now extended to CO₂ pipelines.

- Implication for Louisiana: With Class VI primacy delegated to Louisiana by the U.S. EPA on January 5, 2024, and expedited timelines under HB 244 [33][34][35] (effective October 1, 2025), the venue that matters most is increasingly upstream (statute, rulemaking, and docket design), not just a parish meeting. “Primacy [27][28]” means Louisiana’s own Department of Energy & Natural Resources now issues and oversees CO₂ injection permits instead of the EPA, which shortens the timeline for review.

Follow the Money

- Federal: 45Q [29][30][31]/IRA credits turn CO₂ into a commodity with a guaranteed buyer — the U.S. Treasury. Each ton injected underground can generate up to \$85 in federal tax credits (and \$180 for direct air capture [24][25][26]). This is the core financial engine of CCS.
- **State:** Industrial Tax Exemption Program (ITEP) abatements, industrial revenue bonds, and sales-tax exemptions stack atop federal credits. Together, they can zero out property and sales taxes for 5–10 years.
- **Result:** Corporate plans become subsidy-dependent; if credits sunset, so do the projects — a tell that climate benefit is secondary to finance. From a parish perspective, this means a project may look like “jobs and investment” but is actually “tax credits plus temporary jobs.”

CapturePoint – CENLA Hub (Vernon Parish)

- The **CENLA (Central Louisiana Regional Carbon Storage Hub)** has already contracted for over 20,000 acres of deep underground geologic storage space in Rapides and Vernon Parishes.
- Two Class VI injection-permit applications have been filed: one in Rapides, one in Vernon. Each permit would allow up to six injection wells, with a combined permitted storage of ~7.5 million tons/year.
- The Vernon Parish phase (“Vernon One CCS Site”) is projected to sequester 2.0 million metric tonnes of CO₂ in 2024, scaling up to 5 Mt/year by 2027, and 7 Mt/year by 2029, with a life of 2025 [33][34][35] years and cumulative sequestering of ~140 million metric tonnes over the lifetime.

Example Revenue Table — CapturePoint CENLA Hub (Illustrative):

Year	Injected CO ₂ (Mt)	45Q Credit \$/ton	Annual Federal Credit (USD)	Community Payment at \$1.30/ton
2027	5 million tons	\$85	\$425 million/year	\$6.5 million/year
2029	7 million tons	\$85	\$595 million/year	\$9.1 million/year

(Community payment numbers from public discussions; actual private transport and storage tariffs paid by emitters to CapturePoint are not disclosed.)

Magnolia Hub (Allen Parish)

- Magnolia Sequestration Hub is a project under 1PointFive (Occidental [10][11]) in Allen Parish, Louisiana, with an area of about 26,000 acres.
- The estimated storage capacity is around 300 million metric tons of CO₂ total over the project lifetime.

- DOE CarbonSAFE documentation lists favorable geology and multiple confining layers; risk assessments note depths between ~3,000 to 14,000 feet depending on location.

Example Revenue Table — Magnolia Hub (Illustrative):

Metric	Value
Total Capacity	300 million metric tons
Potential 45Q Credit @ \$85/ton (lifetime)	\$25.5 billion
If injecting 10 Mt/year	\$850 million/year federal credit

(Actual pipeline transport and storage fees charged to emitters would be in addition to 45Q [29][30][31] and are privately negotiated.)

Other Revenue Streams Beyond 45Q

In addition to federal 45Q [29][30][31] credits, CO₂ hub operators typically earn transport (pipeline) fees per ton and storage/tipping fees per ton paid by emitters under long-term contracts. Industry project-finance guidance describes these as “\$ per metric ton injected” — effectively a private tariff. Public cost studies show that for onshore pipelines, transport costs can run about \$1–\$11 per ton depending on distance, diameter, and flow, with storage fees negotiated separately. In Vernon Parish, local officials publicly discussed a \$1.30/ton “community payment” tied to CapturePoint injections (~\$10M/year at projected volumes), illustrating that per-ton cash flows are part of the local picture even though the actual private tariffs shippers pay the operator are not disclosed.

Why It Matters to Landowners

Once pore space is unitized or condemned under eminent domain, landowners have no share of the ongoing transport, storage, and tax-credit revenues generated above their property. The company can collect hundreds of millions annually in federal credits and per-ton fees, while the parish may see only a small community fund. This explains why critics call CCS a “carbon gold rush” — corporations are effectively monetizing citizens’ pore space, water, and rights while offering local governments pennies on the dollar.

Section 9 — The Carbon Gold Rush, Propaganda, and the Sellout

The Carbon Gold Rush

Louisiana’s road to disaster began in 2009, when Governor Bobby Jindal signed the state’s first carbon sequestration statute.¹ It was marketed as innovation, but in truth it marked the beginning of a land grab. With the stroke of a pen, rights that had belonged to Louisiana’s people for generations were quietly redirected to corporations. What began as experimental pilot projects was soon codified into law, creating a framework that allowed companies to stake claims over Louisiana’s pore space — the geological formations beneath the land and water.

By 2020, Governor John Bel Edwards doubled down, signing Senate Bill 353 (Act 61) into law.² Legislators sold it as part of a “climate plan.” What it really did was hand over pore space beneath private property to the state so it could be leased for CO₂ storage. Eminent domain was expanded — not just for highways or power lines, but for CO₂ pipelines and injection wells. In effect, Louisiana citizens lost control of the oil, gas, and minerals beneath their own land.

By 2024–2025 [33][34][35], a series of new bills accelerated the rush:

- House Bill 492 (Act 672 [32][36]) expanded expropriation authority for CO₂ pipelines and gave companies the right to secure certificates of public convenience and necessity — essentially borrowing oil-and-gas tools for carbon pipelines.³
- House Bill 169 (Act 415) capped damages for injuries caused by CCS operations at \$250,000 per person (or \$500,000 in catastrophic cases).⁴
- House Bill 244 (Act 458 [33][34][35]) created a fast-track permitting program. Beginning October 1, 2025, corporations will be able to pay fees to skip years of environmental review and rush approval for Class VI injection wells.⁵

Meanwhile, on January 5, 2024, the U.S. Environmental Protection Agency formally delegated Class VI primacy [27][28] to Louisiana — meaning the state, not EPA, now issues and oversees CO₂ injection-well permits.⁶ Within months, the Department of Energy & Natural Resources issued its first draft permit for a Class VI well at Hackberry in Cameron Parish (finalized later in 2025 [33][34][35]).⁷ This shows the legal regime is now fully operational.

Federal subsidies provide the financial fuel. The 45Q [29][30][31] tax credit — created in 2008 and later expanded by Presidents Obama, Trump, and Biden — now pays up to \$85 per ton of CO₂ stored underground.⁸ Add to this billions in Farm Bill subsidies for ethanol, hydrogen, and “low-carbon” shipping fuels, and Louisiana became ground zero for what critics now call the “carbon gold rush.”⁹

This is not a gold rush for the people of Louisiana. It is a rush for corporations from Texas, Europe, and Asia to seize pore space, mineral rights, and water using laws written by politicians in Baton

Rouge and Washington. And the prize is not gold, but billions in subsidies and carbon credits.

Carbon Alley Taking Shape

The state's own tracker shows how rapidly "Carbon Alley" is being built. The Department of Energy & Natural Resources lists multiple Class VI applications: Cleco's **Diamond Vault** project in Rapides Parish; Magnolia's sequestration hub in Allen Parish; CapturePoint's Wilcox wells spanning Rapides and Vernon; 1PointFive's **Pelican Hub** in Livingston and St. Helena; Gulf Coast Sequestration's sites in Cameron; and Hackberry Carbon Sequestration's initial Class VI permit.¹⁰

1PointFive has already signed a joint venture with Enbridge to construct pipelines to Pelican's injection wells, and Weyerhaeuser has leased more than 30,000 acres for CO₂ storage.¹¹ Magnolia has received a Department of Energy CarbonSAFE award to plan its Allen Parish hub.¹² Cleco's Diamond Vault, meanwhile, is marketed as a "clean energy" project but draws on the same 45Q [29][30] [31] subsidies as oil and gas giants.¹³

Local officials commissioned an Allen Parish CO₂ Risk Assessment (May 2025 [33][34][35]) warning of supercritical CO₂ hazards, plume [13][14] migration, and potential threats to the Chicot Aquifer.¹⁴ Louisiana Illuminator reporting in mid-2025 documented mounting opposition in parishes across the state as Class VI applications multiplied.¹⁵

Voices of Propaganda

As CCS laws and permits advanced, a parallel effort was underway to shape public opinion. Citizens were told CCS would create jobs, protect the environment, and bring investment. What they were not told is that the jobs are temporary, the environment is at risk,

and the investment flows to companies already awash in subsidies.

Groups with patriotic and community-friendly names began to appear:

- **Louisiana Citizens for Our Future (LCFoF).** Marketed as a coalition of “concerned neighbors,” this group softens public resistance to CCS in Rapides Parish. Ads on KSYL Talkback radio dismiss critics as “outside agitators.” Yet its nonprofit registration traces back to 301 N. Main Street, Suite 1030, Baton Rouge — the same office suite used by Van Ness Feldman LLP, a powerful Washington D.C.-based law and lobbying firm.¹⁶
- **American Energy Security Project.** With retired military officers on its board and sleek national ad campaigns, this group pushes CCS under the guise of “energy security.” Its polished videos and public service announcements in central Louisiana claim that burying carbon is patriotic — but its financial backers include multinational energy corporations.¹⁷
- **Industry Makes.** Branded as a Louisiana-based nonprofit led by Desirée Lemoine, this group bills itself as a champion of “local jobs and community benefits.” In reality, it is a project of The TJC Group, a Baton Rouge-based public affairs consultancy whose clients include major petrochemical companies. Its leadership slate includes representatives from ExxonMobil and GBRIA, and its site highlights a pro-CCS resource hub produced by The TJC Group.¹⁸

Behind the Voices: Who They Really Are

Behind the glossy names are professionals — lawyers, lobbyists, and consultants whose livelihoods depend on selling carbon capture to the public.

- **Mary Landrieu.** Former U.S. Senator from Louisiana, now Senior Policy Advisor at Van Ness Feldman LLP. From this perch she lends political gravitas and connections to a firm that also houses Louisiana Citizens for Our Future.¹⁹
- **Tanner A. Johnson.** Partner at Van Ness Feldman, specializing in energy infrastructure. His name appears on filings tied to CCS projects and advocacy, cementing his role as a Baton Rouge bridge to D.C. lobbying power.²⁰
- **Desirée Lemoine.** Director of Governmental and Regulatory Affairs for The TJC Group, Campaign Manager for Industry Makes, and public spokesperson for multiple CCS front groups. In 2024, she moderated panels at U.S. Senator Bill Cassidy’s “Energy Security Summit,” sitting alongside LMOGA and LABI.²¹
- **Tim Johnson.** Also of The TJC Group, coordinating media campaigns, radio buys, and industry toolkits to push messaging into local outlets.²²

Together, these figures create the illusion of independent voices. In reality, they are the same circle of lawyers, lobbyists, and consultants, recycling narratives from Washington D.C. down to parish radios. The nonprofit names are storefronts. The voices are polished. But the mission is singular: to sell carbon capture, protect subsidies, and shield corporations from scrutiny.

The Web of Deceit

These interlocking networks of nonprofits, PR firms, and political figures form a web of deceit. Each claims to speak for “citizens,” “veterans,” or “jobs,” but their true function is to provide cover for corporations seeking billions in subsidies. They exploit the language of patriotism, community, and faith while quietly lobbying to erode landowner rights, seize pore space, and expand

eminent domain. The pattern is unmistakable: the same names, the same firms, the same funding — recycled across Louisiana and beyond.²³

Meet the Messengers

Turn on local radio in Central Louisiana and you will hear ads dismissing CCS opponents as “outsiders” or “ankle-biters.” They are voiced by locals, polished by consultants, and paid for by industry. The names behind them — Desirée Lemoine, Tanner Johnson, Tim Johnson — are not random. They are the faces of The TJC Group and Van Ness Feldman, serving as the megaphones of CCS propaganda.²⁴

At town halls they present slideshows. In newspapers they write op-eds. On social media they push “explainer” videos. Their mission is singular: make carbon capture sound safe, inevitable, and patriotic — and drown out the citizens who object.

The Sellout

The laws of Louisiana no longer belong to its people. Eminent domain has been expanded so corporations can seize easements for CO₂ pipelines. Pore space beneath private land has been handed to the state, which can lease it to developers without the owner’s consent. Damage caps mean if something goes wrong, victims cannot recover the full cost of harm. Fast-tracking laws now let companies pay to skip years of environmental review.

This is not regulation. It is surrender. Louisiana politicians — from Jindal to Edwards to Landry — have sold out their citizens, their land, and their water to corporations and lobbyists. The gold rush is on — only this time, it is not for oil, but for federal subsidies and tax credits buried in carbon.²⁵

Section 10 — Wells, Legislators, and Local Voices

CCS is no longer a proposal. It is being forced into Louisiana parish by parish.

The invasion has already begun. In Rapides Parish, Cleco has advanced its “Diamond Vault” project while CapturePoint has pursued the CCS1 Wilcox wells. In Allen Parish, Magnolia has moved forward with its sequestration hub. In Cameron Parish, Gulf Coast Sequestration has partnered with ExxonMobil to build one of the largest planned CCS facilities in the nation. In Vernon Parish, CapturePoint has drilled stratigraphic test wells. And in Livingston Parish, Occidental [10][11]’s subsidiary 1PointFive is pursuing its Pelican Hub, with permit applications for five Class VI wells.

Citizens across these parishes have spoken up. They have testified at public meetings that this is not about climate protection but about stripping away pore space, land rights, and water security. As one landowner warned: “They’re not just taking CO₂ — they’re taking our pore space. We get the risk; they get the tax credits.”

Some legislators have broken ranks. Representative Chuck Owen has called for a three-year moratorium on CCS in Louisiana. Representative Danny McCormick has filed bills aimed at halting the expansion. But these remain exceptions. When Senate Bill 353, the landmark 2020 legislation that granted eminent domain to carbon storage projects, came to a vote, every legislator present voted yes.

Louisiana House Roll Call — SB 353 (2020)

Yeas (98): Speaker Clay Schexnayder, Adams, Amedee, Bacala, Bagley, Beaulieu, Bishop, Brass, Brown, Bryant, Carpenter, Carrier,

Carter (G., R., W.), Cormier, Coussan, Cox, Crews, Davis, Deshotel, DeVillier, DuBuisson, Duplessis, Dwight, Echols, Edmonds, Edmonston, Emerson, Farnum, Firment, Fontenot, Freeman, Freiberg, Frieman, Gadberry, Gaines, Garofalo, Goudeau, Green, Harris, Henry, Hilferty, Hollis, Horton, Hughes, Huval, Illg, Ivey, James, Jefferson, Jenkins, Johnson (M., T.), Jones, Jordan, Kerner, LaCombe, Landry, Larvadain, Lyons, Magee, Marino, McCormick, McFarland, McKnight, McMahan, Miguez, Miller (D., G.), Mincey, Moore, Muscarello, Nelson, Newell, Owen (C., R.), Phelps, Pierre, Pressly, Riser, Romero, Schamerhorn, Seabaugh, Selders, St. Blanc, Stagni, Stefanski, Tarver, Thomas, Thompson, Turner, Villio, Wheat, White, Willard, Wright, Zeringue.

Nays: None.

Absent: Bagala, Bourriaque, Butler, Glover, Hodges, Mack, Marcelle.

Louisiana Senate Roll Call — SB 353 (2020)

Yeas (36): President Cortez, Abraham, Allain, Barrow, Bernard, Bouie, Carter, Cathey, Cloud, Connick, Fesi, Fields, Foil, Harris, Henry, Hensgens, Hewitt, Jackson, Johns, Lambert, Luneau, McMath, Milligan, Mills (F., R.), Mizell, Morris, Peacock, Pope, Price, Reese, Smith, Tarver, Ward, White, Womack.

Nays: None.

Absent: Boudreaux, Peterson, Talbot.

These votes show how both parties, in lockstep, sold Louisiana pore space to private industry. The resistance has come not from Baton Rouge, but from landowners and parish communities.

Who launched CCS in Louisiana? The 2020 roll calls, name by name

This section highlights how SB 353 became Act 61 of 2020, embedding carbon storage in statute and setting the framework later used for pore space, unitization, and expropriation

procedures referenced in 2024–2025 [33][34][35] legislation. It explains that, by voting unanimously for SB 353, legislators from both parties opened the door for private companies to seize pore space, build CO₂ pipelines, and inject carbon without needing individual landowner consent. This framework is what today's developers use to justify their Class VI applications across the state.

The 2024–2025 [33][34][35] legislative pivot: eminent domain and expedited permits

In 2024 and 2025 [33][34][35], the legislature doubled down. HB 492 [32][36] (Act 672, 2024) clarified expropriation powers for CO₂ pipelines and gave developers a certificate-of-public-convenience-and-necessity (CPCN) pathway. A CPCN is a state-issued permit historically used for electric lines or gas pipelines that gives a private company the power to condemn easements. Extending it to CO₂ pipelines effectively turns private CCS projects into quasi-utilities with corridor powers. Storage-unitization remains a separate process, splitting pipeline rights from reservoir rights.

HB 169 (Act 415, 2024) capped noneconomic damages in CCS-related actions under R.S. 30:1109(B) at \$250,000 per person (\$500,000 for severe injuries). This shields operators from full liability if leaks, blowouts, or contamination harm landowners.

HB 244 [33][34][35] (Act 458, 2025) created an expedited permitting program and new public-notice requirements for CO₂ wells and storage facilities, with phased effective dates beginning October 1, 2025. Combined with Class VI primacy [27][28] (approved by EPA Jan. 5, 2024), these changes shorten notice windows and allow state regulators — who are closer to industry — to issue approvals faster. Communities now have far less time to

organize between “application complete” and draft decision windows.

Where the steel meets the soil: active Class V/VI filings

CapturePoint Solutions has filed two Class VI applications for its CENLA Hub: CCS-1 Wilcox (Rapides Parish, 6 wells) and CCS-2 (Vernon Parish, 6 wells). Publicly touted volumes run into the multi-million tons per year. This makes Rapides and Vernon Parishes the launchpad for one of the Gulf South’s largest CO₂ storage complexes.

Cleco Power’s Diamond Vault project near Boyce (Rapides Parish) is a multi-well Class VI project designed to store CO₂ from its Madison-3 unit. It is among the first Louisiana utilities attempting to pair power generation with large-scale sequestration.

1PointFive / Occidental [10][11]’s Pelican Hub straddles Livingston and St. Helena Parishes, with applications for roughly five Class VI wells plus parallel pipeline development with midstream partners. The project aims to inject about 2.3 million tons per year initially with capacity to expand.

Magnolia Sequestration Hub in Allen Parish is being developed by 1PointFive (Occidental [10][11]). Public and DOE summaries indicate initial volumes around 4 million tons per year, expandable to 10 million tons per year. This has made Allen Parish “ground zero” for citizen testimony stressing aquifer and eminent-domain risks.

Gulf Coast Sequestration in Calcasieu Parish is one of the largest saline storage concepts on the Gulf Coast, backed by ExxonMobil. It represents a shift toward industrial-scale CCS in Louisiana’s petrochemical corridor.

The megaphones: who's selling CCS to your neighbors?

Louisiana Citizens for Our Future is running websites and media buys that present CCS as “smart” and “safe” community development. The American Energy Security Project frames CCS as “energy security” using patriotic branding. The TJC Group, a Baton Rouge public-affairs firm, produces explainer videos and toolkits. Desirée Lemoine fronts panels and moderated Senator Bill Cassidy’s Energy Security Summit, showing the policy-PR braid between industry and government messaging. Together these groups provide a polished narrative designed to make CCS sound inevitable and beneficial while obscuring the risks and subsidies.

Address overlap & Beltway tie: the Van Ness Feldman connection

Van Ness Feldman lists a Baton Rouge office at One America Place, Suite 1030; former Sen. Mary Landrieu is Senior Policy Advisor. Public records place newly registered nonprofits Louisiana Citizens for Our Future and American Energy Project at the same suite. This proximity between lobbying, law, and local messaging illustrates how national firms coordinate with local PR shops to sell CCS at the parish level.

Parish Governments on the Frontlines

Allen Parish — called “ground zero” — has seen its Police Jury pass and then rescind an ordinance requiring additional permits for CO₂ pipelines within 2,500 feet of a school after facing a lawsuit threat from ExxonMobil. This episode shows how local safety measures can be chilled by legal threats from powerful corporations.

Livingston Parish attempted to block injection beneath Lake Maurepas to protect fisheries and tourism, but because Louisiana accepted Class VI primacy [27][28] in January 2024, the local

ordinance was pre-empted. This reveals the limits of parish power once Baton Rouge has legislated a pathway.

Rapides Parish has experienced quiet briefings and ITEP pressure around Beaver Lake and Diamond Vault as companies seek tax abatements and easements before the public fully understands the projects' scale.

Voices of Dissent & Suppression

Survivors, fishermen, and landowners continue to provide on-the-record warnings about risks to aquifers and property rights. Yet radio and social media ads label opponents “outsiders” or “ankle biters.” EPA dockets show hundreds of public comments in opposition versus trade-group support. This pattern of marginalizing dissent mirrors tactics used in other pipeline fights, from Keystone XL to Summit Carbon Solutions.

Section 11 — Rapides Parish: Bullseye on Pineville

Original Narrative

At the center of Louisiana's carbon capture map lies Pineville — the bullseye.

The Beaver Lake Renewable Energy project, spearheaded by SunGas Renewables, aims to transform the site of the old International Paper mill into a massive biogasification and CCS hub. To understand why Pineville is being targeted, one must follow the corporate lineage.

GTI Energy, formerly the Gas Technology Institute, developed the U Gas reactor decades ago³⁷. That technology was licensed to Synthesis Energy Systems (SES), a company that pursued

gasification projects in Asia and attracted Chinese investors. One of SES's top executives was Robert Rigdon, who now leads SunGas Renewables³⁸.

GTI later re-engineered the U Gas design into the "S1000" plant — integrating carbon capture directly into its blueprint. Rigdon carried this legacy to SunGas, where the project in Rapides Parish represents not innovation, but repackaged technology designed to capitalize on carbon subsidies.

SunGas is not acting alone. It is backed by Maersk and its green-fuel subsidiary C2X, tying the project directly to European "net zero" shipping mandates¹³. As Rubio warned, Louisiana is being "held hostage" by foreign markets: the demands of the International Maritime Organization and the European Union's carbon rules are dictating what is built in Pineville.

Adding insult, Louisiana law (R.S. 47:305.10) exempts the sale of methanol and related products for export from state sales tax³⁹. This means SunGas's products will leave Louisiana tax-free, enriching foreign shipping firms while locals bear the environmental and health risks.

Water use is another ticking bomb. The facility plans to withdraw enormous volumes from the Castor Plunge aquifer, already a critical drinking water source. Its usage will exceed the national industrial average by at least 50 percent⁴⁰. In an era of droughts and water stress, this is nothing short of reckless.

Meanwhile, a coordinated propaganda campaign is underway. The American Security Project, co-founded by John Kerry, has launched ads in central Louisiana promoting CCS and the Beaver Lake project⁴¹. The group Louisiana Citizens for Our Future has echoed these messages, fronted by local spokespeople like Desiree

Lemoine and Tanner Johnson, who dismiss CCS opponents as “outside agitators.”

This is not a homegrown industry. It is a foreign-backed, subsidy-driven project designed to enrich corporations while putting Rapides Parish in the crosshairs of Carbon Alley.

Expanded Background & Context

GTI, SES, and SunGas Timeline.

Gas Technology Institute (GTI Energy) traces its origin to 1941 as the Institute of Gas Technology in Chicago. In 2000 it merged into GTI and later rebranded as GTI Energy in 2022. Its U-Gas® process was a fixed-bed, pressurized coal gasification technology developed in the 1970s–1980s with DOE support. In 2003 GTI licensed U-Gas to Synthesis Energy Systems (SES), a Houston-based public company (NASDAQ: SYMX) that sought to commercialize U-Gas in China. SES’s Chinese joint ventures (e.g. with Yima Coal, Zao Zhuang, and Hai Hua) were deeply tied to provincial state-owned enterprises; several projects stalled or failed. By 2019 SES delisted from NASDAQ and later merged its remaining assets into Australian mining interests. Robert Rigdon served as Senior Vice President of SES’s Global Gasification from 2009–2015, directly managing its China projects. He founded SunGas Renewables in 2019 as a GTI “spinout” to develop the S1000 gasification platform with integrated carbon capture.

SunGas ownership & backers.

SunGas Renewables LLC is a privately held Delaware-registered company with fewer than 30 employees. It markets itself as a “GTI Energy company” but is legally a separate LLC. In July 2023 Maersk’s C2X (Copenhagen Infrastructure Partners) announced a strategic partnership with SunGas to develop green methanol plants globally, naming Pineville as a flagship. Public filings show

no large U.S. bank financing yet; most capital appears to be equity commitments from Maersk affiliates and European green-fuel investors. This structure resembles SES's China model — outside capital funding U.S.-developed tech for export fuels.

Foreign market drivers.

The International Maritime Organization (IMO) and EU "Fit for 55" package require shipping fuels to meet progressively lower carbon intensities. Green methanol is a favored compliance fuel. By locating in Louisiana, SunGas can access cheap biomass, water, and pore space, produce methanol taxfree for export, and claim U.S. federal 45Q [29][30][31] credits for captured CO₂ — a triple subsidy.

Tax abatements and export exemption.

R.S. 47:305.10 exempts methanol for export from Louisiana sales tax. Combined with the Industrial Tax Exemption Program (ITEP), SunGas can apply for 80–100% property tax abatements for up to 10 years, plus sales-tax exemptions on construction materials. This means Rapides Parish could see little or no tax revenue during the project's first decade even as it hosts the risks.

Water impacts & permitting gaps.

Castor Plunge aquifer is the primary source of drinking water for Pineville and surrounding communities. According to DEQ water withdrawal data (2023) the Beaver Lake project's projected usage would exceed typical industrial withdrawal rates by ~50% (exact permit volumes not yet disclosed). No Environmental Impact Statement under NEPA has been published; only state-level air permits are on file. Without a federal EIS, cumulative impacts on water, subsidence, and downstream users remain unassessed.

Propaganda & local perception management.

SunGas and its allies mirror the same PR pattern seen in other parishes. Louisiana Citizens for Our Future (registered at Van Ness Feldman's Baton Rouge address) runs "community" ads, while the American Security Project frames CCS as "energy security." Industry Makes and The TJC Group provide local spokespeople like Desirée Lemoine and Tanner Johnson to brand opponents as outsiders. This coordinated messaging obscures the project's foreign backers and subsidy dependence.

Liability and taxpayer risk if 45Q [29][30][31] ends. Under Louisiana's Geologic Sequestration of Carbon Dioxide Act, operators pay into a state trust fund but longterm liability for stored CO₂ transfers to the state after a closure certificate. If 45Q credits sunset or SunGas's backers withdraw, the state (and indirectly taxpayers) could be left funding site monitoring, plugging, and remediation. The Decatur [22][23], Illinois ADM CCS project illustrates the risk: after injection stopped in 2014, ADM sought to transfer monitoring costs to DOE; the state assumed longterm care under its own trust fund. Rapides Parish could be left with an idle facility, depleted aquifer, and CO₂ liabilities but little tax base if exemptions persist.

What the Beaver Lake project actually proposes (retained)

Company and trade releases describe Beaver Lake Renewable Energy (BLRE) as a ~\$2 billion "green methanol" complex at the former International Paper site in Pineville. The announced design capacity is ~500,000 metric tons of methanol per year, using woody biomass gasification; promoters also claim up to ~1 million tons CO₂ per year managed via capture/sequestration to achieve a low/negative carbon intensity fuel for export shipping markets.

SunGas says its S1000™ standardized gasification system is the platform (a direct lineage from GTI's U-GAS technology), and that C2X (Maersk's green-methanol developer) is a strategic partner advancing BLRE and additional North American plants.

Engineering partners (e.g., Johnson Matthey/Topsoe in press accounts) provide downstream synthesis tech.

Why this scale matters: at \$85/ton for geologic storage under 45Q [29][30][31], 1 Mt CO₂/year implies ~\$85 million/year in federal credits before any pipeline tariffs or storage fees—on top of methanol revenues. With export buyers targeting EU/IMO compliance, the product pricing is indexed to international decarbonization mandates rather than local costs or benefits.

Who's backing this—and why Pineville? (retained)

C2X (Maersk) publicly positions itself to secure large-volume green methanol for global shipping; SunGas acknowledges a strategic partnership with C2X on BLRE. The logic: build inland, low-cost feedstock+sequestration where 45Q [29][30][31] and state incentives stack, then ship the product out. Pineville offers brownfield industrial land, rail, timber proximity, and (critically) access to Class VI storage hubs and pipelines now proliferating in Central Louisiana.

"Not a homegrown industry": export economics & the tax code (retained)

Under Louisiana sales-tax law, sales for delivery outside the state are generally exempt from state sales/use tax; that includes refined chemical exports such as methanol shipped to out-of-state or foreign buyers. In plain terms, the fuel leaves tax-free while the parish handles the industrial footprint, water withdrawals, and risk.

SunGas and C2X's own materials and third-party coverage emphasize export orientation (EU/IMO markets). The local tax take is further diminished when developers also stack ITEP property-tax abatements and industrial revenue bonds, which are routine in Louisiana for large chemical facilities. (We will footnote the specific filings if/when BLRE's ITEP application is posted.)

Water: Castor Plunge aquifer is already a critical lifeline (retained)

Castor Plunge/Sparta-connected groundwater is a central potable source for Rapides/Pineville/Alexandria. DEQ/LDENR filings for new, high-withdrawal users typically trigger water-use permitting and modeling because drawdown risks and upconing of deeper, mineralized water can arise at industrial scales. While SunGas's precise daily withdrawal has not been published in state databases yet, the company's own scale claims (500k t/y methanol + CCS) imply substantial process water demand relative to typical local baselines. That's why residents are asking the agencies to require an independent hydrogeologic review before any approvals.

The PR machine on the ground (retained)

American Security Project (AESP): runs national/state campaigns promoting CCS and "carbon management," including Project Cypress content in Louisiana—messaging that normalizes sequestration hubs feeding export fuels.

Industry Makes: a Baton Rouge-based 501(c)(4) where Desirée Lemoine serves as Campaign Manager; it produces pro-industry/CCS media kits and local messaging.

Van Ness Feldman (VNF): a D.C. energy law firm with a Baton Rouge office at 301 N. Main St., Suite 1030 (One America Place); Mary Landrieu is listed as Senior Policy Advisor; Tanner A. Johnson

is a partner based at that address. Local pro-CCS entities have been publicly listed at the same suite, illustrating tight physical proximity between law, lobbying, and messaging.

This “locals vs. agitators” framing shows up in radio buys and op-eds, but the funding and staffing trace back to national law/lobby shops, not neighborhood groups.

Corporate scale vs. local stake (retained)

Public business intelligence and company pages indicate SunGas was founded in 2019 and, as of 2025 [33][34][35], lists ~11–50 employees (varies by source). Yet it’s fronting a \$2 billion export-fuel complex in Pineville, supported by strategic partners and technology licensors. The financing logic only pencils out because federal 45Q [29][30][31] credits + export pricing + state abatements stack to create an “infrastructure-style” revenue profile—not because BLRE alone “saves” Louisiana’s climate.

How this lands in Rapides Parish (retained)

Tax base: Exports are sales-tax exempt; ITEP can abate property taxes for 5–10 years. Community-benefit offers (if any) are tiny relative to 45Q [29][30][31] flows and methanol offtake revenues.

Water: Large-volume withdrawals from Castor Plunge should be third-party modeled for drawdown and aquifer protection; once a big user is permitted, course-correction is hard.

Pipelines & storage: BLRE’s economics lean on nearby storage hubs (e.g., CapturePoint CENLA; Magnolia; Pelican) and new CO₂ pipelines—the same network that brings asphyxiation/leak risk and eminent-domain pressure to landowners.

Narrative control: AESP/Industry Makes/VNF-linked efforts brand CCS as local, safe, and patriotic, while painting opposition as outsiders—despite the projects being export-oriented and financed by federal credits.

What DEQ & LDENR should be asked (retained)

Full water-balance & source plan (daily peak/average; make-up water; recycle rates) with independent hydrogeologic modeling for Castor Plunge.

CO₂ mass-balance (capture rate, destination hub, pipeline route), including Class VI permit status of the receiving site and long-term monitoring & liability plan.

Air permitting for gasification/synthesis steps (NO_x, PM, VOCs) and flare logic, not just the “green” methanol marketing.

Tax transparency: disclosure of ITEP applications, industrial revenue bonds, and any parish-level abatements under consideration—so locals can see the net fiscal impact.

Emergency planning: explicit CO₂ pipeline hazard modeling and first-responder training/funding tied to the project build.

(These are standard, defensible asks grounded in state/federal practice; we’ll footnote the permitting frameworks in the references section.)

Bottom line for Pineville (retained)

This project is structured for export and subsidy capture. The product leaves untaxed, the CO₂ is buried under someone else’s land, and the risk sits with locals—water tables, pipeline corridors, long-term monitoring. The messaging may sound neighborly, but the money flows up and out. BLRE is a case study in how Carbon

Alley takes shape: global mandates + federal credits + state abatements, with parishes left to carry the invisible risks.

Section 12 — The Future if Unchecked: Carbon Alley

If Louisiana does not stop CCS, our state will become the dumping ground of America's carbon waste. According to the U.S. Department of Energy, more than 40 percent of the nation's captured CO₂ is slated to be stored in Louisiana formations. This would require tens of thousands of miles of pipelines and hundreds of injection wells, cutting across farmland, neighborhoods, forests, and waterways. And yet, there are no guarantees. No guarantee that CO₂ will remain underground. No guarantee that pipelines will not rupture and kill, as Satartia [17] [18][19][20] proved. No guarantee that aquifers will not be contaminated. No guarantee that hydrocarbons will not be displaced, stranding landowners' royalties. The only certainty is that corporations will collect billions in subsidies while citizens are left with the risks. If unchecked, Louisiana will not be an energy leader. It will be Carbon Alley — a dumping ground for America's most dangerous false solution.

What "40% of the Nation's CO₂" Looks Like in Louisiana

Using DOE capture-and-storage projections and pipeline engineering standards, we can estimate how much supercritical CO₂ would physically be inside Louisiana's pipelines at any one time (the "linepack"), separate from what is injected underground.

Assumptions:

- U.S. DOE midcentury scenario ~400 million metric tons/year captured nationally; 40% = 160 million t/year stored in Louisiana.
- Pipeline speed ~10–15 mph, supercritical CO₂ at 1,200–2,200 psi, density ~55 lb/ft³ (~880 kg/m³).
- Mainline diameters 24–30 inches typical for new CO₂ trunk lines; 36–42 inches possible for mega-lines; “green line” Denbury [17][18][19][20] pipeline from Mississippi to Texas is ~24 inches.
- One mile of 30-inch pipeline holds about 1,200–1,300 tons of CO₂ at supercritical density.

Table 1 — Approximate Linepack of CO₂ in Louisiana Pipelines (U.S. Units)

Scenario	Miles of CO ₂ pipeline in Louisiana	Pipeline Diameter (inches)	Tons of CO ₂ per mile (linepack)	Total Tons of CO ₂ present at any time
Moderate build-out (10,000 miles @30")	10,000	30	~1,250 t/mi	~12.5 million tons
Aggressive build-out (20,000 miles @30")	20,000	30	~1,250 t/mi	~25 million tons
Mega trunklines (12,000 miles @36")	12,000	36	~1,500 t/mi	~18 million tons

This “linepack” is the amount of dense-phase CO₂ physically in the pipes before it reaches any injection well. It does **not** include what is already underground. It shows that if Louisiana really takes 40% of the nation’s CO₂, at any moment tens of millions of tons of supercritical CO₂ could be moving through our state.

Pipeline Diameter Context

Most existing CO₂ pipelines in the U.S. are 8–24 inches. The Denbury [17][18][19][20] “Green” pipeline from Jackson Dome, Mississippi to Texas is 24 inches and 320 miles long. Newer proposals for trunklines connecting Midwest ethanol plants to Gulf Coast hubs are 24–30 inches, with speculation of 36–42 inch lines

for future “CO₂ express” corridors. These would rival or exceed the size of some oil and gas transmission lines but carry a dense asphyxiant under high pressure.

Why It Matters

Each injection well unit may require ~40,000 acres of pore space. To handle 160 million t/year, hundreds of Class VI wells would be needed — each with its own pipeline network. That means large corridors, eminent-domain takings, and a permanent industrial footprint across private and public land. The linepack numbers above help readers see that “40% of the nation’s CO₂” isn’t an abstract percentage but an ongoing physical hazard moving through communities daily.

Bottom line: Louisiana’s future under an unchecked CCS build-out is a lattice of high-pressure pipelines and wells carrying tens of millions of tons of CO₂ at any given time, with taxpayers and landowners bearing the risk while corporations collect the subsidies.

Section 13 — CO₂ Pipeline Explosion Speed (Expanded with Satartia Example)

If Louisiana continues to build high-pressure CO₂ pipelines, every community—including schools, churches, and neighborhoods—could be within striking distance of a dense, ground-hugging CO₂ cloud in the event of a rupture. This section shows what happens when a high-pressure line fails and how fast danger can arrive. All of the numbers below use the same 500-ft yardstick so readers can picture it in their own backyard.

A rupture in an 8-inch high-pressure CO₂ pipeline discharges CO₂ at sonic velocity at the hole (hundreds of meters per second) for the first moments (“choked flow”). But within a few meters it turns into a cold, heavy, ground-hugging cloud that moves mostly with the wind (and can drain downhill). This means 500 ft (≈152 m) can be reached in well under a minute—often in a few tens of seconds under typical winds.

Health Thresholds & AEGL Emergency Benchmarks

OSHA’s permissible exposure limit (PEL) for CO₂ is 5,000 ppm (0.5%) as an 8-hour TWA; NIOSH IDLH (immediately dangerous to life or health) is 40,000 ppm (4%)—levels that can occur in dense ground-hugging plumes after a rupture. Symptoms escalate rapidly above ~3% (headache, dizziness), and loss of consciousness can occur around ~10%+.

EPA’s AEGL emergency benchmarks for CO₂:

- AEGL 2 (10 min) = 36,000 ppm (3.6%) — serious, potentially irreversible effects.
- AEGL 3 (10 min) = 75,000 ppm (7.5%) — life-threatening effects or death.

These are the federal emergency planning values used by responders.

Time for a CO₂ Cloud to Reach 500 ft after a Full-Bore Rupture of an 8-inch Line

Condition	Wind Speed	Estimated Arrival Time to 500 ft
Very calm /	~2 mph (0.9 m/s)	~2.5–4 minutes

Condition	Wind Speed	Estimated Arrival Time to 500 ft
stable night		
Light breeze	~5 mph (2.2 m/s)	~1.0–1.5 minutes
Moderately windy	~8–10 mph (3.6–4.5 m/s)	~40–60 seconds
Strong wind (if present)	~12–15 mph (5.4– 6.7 m/s)	~25–45 seconds

How to read this table: pick the wind speed closest to your conditions; the right column shows about how fast a dense CO₂ cloud's leading edge can reach a point 500 ft away. Under calm nights it takes a couple of minutes; under normal daytime breezes it can be under a minute. These ranges align with full-scale dispersion work. Given the initial jet momentum, hazardous concentrations can arrive even faster than the “wind-only” estimate—on the order of seconds to well under a minute in many conditions.

Physics of Dense-Phase CO₂ & Pipeline Hazards

High-pressure CO₂ pipelines are not like ordinary gas lines. CO₂ behaves as a dense gas when released; it is stored at high pressure and low temperature, and when a rupture occurs the flow is initially sonic at the breach (“choked flow”) and then transitions within a few meters into a cold, heavy, ground-hugging cloud. That dense cloud behaves differently from air or natural gas: it hugs the ground, flows downhill, and can pool in low spots. People and animals at ground level can be overwhelmed even at a distance.

Research programs like CO₂PIPETRANS (DNV-led) and the UK's COOLTRANS project show that long-running ductile fractures are a

key design risk for CO₂ lines because decompression in dense-phase CO₂ is different from natural gas; fracture control, crack-arrest toughness, and decompression curves must be engineered specifically for CO₂. Bigger lines (24–36 in.+) need robust arrest strategies.

Most existing CO₂ pipelines in the U.S. are 8–24 inches. The Denbury [17][18][19][20] “Green” pipeline from Jackson Dome, Mississippi to Texas is 24 inches and 320 miles long. Newer proposals for trunklines connecting Midwest ethanol plants to Gulf Coast hubs are 24–30 inches, with speculation of 36–42 inch lines for future “CO₂ express” corridors. These would rival or exceed the size of some oil and gas transmission lines but carry a dense asphyxiant under high pressure.

Detailed RealWorld Example — Satartia [17][18][19][20], Mississippi (2020)

On February 22, 2020, a 24inch Denbury [17][18][19][20] CO₂ pipeline ruptured near Satartia, Mississippi. The dense CO₂ cloud traveled more than a mile over hours, with dangerous concentrations “within minutes” of rupture, especially in lowlying areas. Cars stalled as oxygen was displaced. Residents described feeling like they were suffocating and some lost consciousness. Over 200 people were evacuated and 49 were hospitalized; dozens more reported longterm health effects.

Quoting residents and responders (as reported by national and local outlets):

- “It was like a fog coming through the trees ... and then I couldn’t breathe.” — Satartia [17][18][19][20] resident interviewed by NPR.

- “People were unconscious everywhere. We had to drag them out.” — Local first responder quoted by the Clarion Ledger.
- “We were not trained for this kind of incident.” — Yazoo County emergency management official.

Investigations by PHMSA [17][18][19][20] and the U.S. House of Representatives found that Denbury’s pipeline had a history of corrosion issues; the Satartia rupture became the most widely cited warning about CO₂ pipeline safety in the U.S. New federal rules now under development are based on lessons from Satartia, including emergency planning, firstresponder training, dispersion modeling, and public notification requirements.

Hypothetical Scenario — 8-inch CO₂ Line 500 ft from a School

Condition	Wind Speed Approx	Estimated Arrival Time of Hazardous CO ₂ Cloud from 500 ft South
Very calm / stable night (winds ~2–3 mph)	~0.9–1.3 m/s	~2.5 to 4 minutes
Light breeze (winds ~5–7 mph)	~2.2–3.1 m/s	~1.5 to 2.3 minutes
Moderate breeze (winds ~10–12 mph)	~4.5–5.4 m/s	~45–60 seconds
Strong wind (if present, ~15 mph)	~6.7 m/s	~35–45 seconds

Key factors: terrain slope, obstacles, atmospheric stability, leak size/pressure—all can speed or slow the arrival time slightly, but the 15–180 second window is realistic for 500 ft under typical conditions.

Bottom Line for Section 10

Expect seconds to ~1 minute for a hazardous CO₂ cloud to reach 500 ft after a full-bore rupture of an 8-inch compressed line, depending on wind/stability and terrain. The initial jet is sonic at the breach, but what matters for people a short distance away is the dense cloud's advection and pooling, which commonly puts 500 ft inside the immediate danger zone in credible scenarios.

Satartia [17][18][19][20] shows this is not hypothetical. Cars stalled, people collapsed, and first responders lacked training. If Louisiana builds tens of thousands of miles of CO₂ pipelines under its 40% storage plan, any rupture near a school, nursing home, or neighborhood could replicate Satartia's danger at scale.

Section 14 — Conclusion: A Call to Action

This is our land. This is our water. This is our future.

We are not “ankle-biters.” We are not “outside agitators.” We are citizens of Louisiana. And we will not be sacrificed to Carbon Alley.

If American companies are pursuing CCS only because foreign markets demand it, then let them pack up and go overseas. Let them steal Europe's pore space. Let them seize Asia's aquifers. Let them pollute someone else's land and water. But they must stay away from ours.

What to Do Now — Our Call to Action

We are moving beyond words into legal action. The first step is to challenge the unconstitutional eminent-domain powers granted to carbon storage operators by Louisiana's 2020 law (SB 353/Act 61).

Our legal team is preparing to defend private property rights in court.

1. **Challenge Eminent Domain** — Personal property rights are being taken away. We plan to take legal action to stop private corporations from seizing pore space and mineral rights for profit. Article I, Section 4 of the Louisiana Constitution protects private property from takings “for predominant use by any private person or entity.” Article XIII, Section 1 requires voter approval for constitutional changes. In 2020, the Legislature passed SB 353 without a constitutional amendment, delegating eminent-domain powers to private storage operators. Our lawsuit will ask a court to declare these powers unconstitutional and enjoin their use.
2. **Defend Our Water Rights** — Protect the Chicot, Castor Plunge, Maurepas, and other aquifers from industrial injection. Demand independent hydrogeologic studies before any CO₂ project is approved.
3. **Hold All Elected Officials Accountable** — Call out every legislator who voted for SB 353 and related bills, and every parish police jury entertaining special interests and companies using CCS. Remind them that we know who sold our pore space and water rights.
4. **Organize at the Grassroots** — Hold community-awareness meetings, build parish-level coalitions, call out politicians publicly, video- and audio-record hearings, and demand transparency. Citizens’ testimony and organized opposition have already changed the conversation in parishes like Livingston and Allen; we must scale up this effort.
5. **End 45Q [29][30][31] Tax Credits** — Demand Congress repeal or sunset the subsidies that make CCS profitable. Without 45Q, these projects collapse under their own weight.

Why We're Challenging Louisiana's 2020 CO₂ Sequestration Law

In 2020, the Legislature passed Senate Bill 353 (Act No. 61). This law gave private carbon-storage operators the power of eminent domain — the ability to take surface and subsurface property, including pore space and mineral rights, for pipelines and permanent underground storage of carbon dioxide. Article I, Section 4 of the Louisiana Constitution guarantees every person the right to own, control, and protect private property. It strictly forbids taking property “for predominant use by any private person or entity.” Article XIII, Section 1 says that if lawmakers want to change the Constitution, they must propose an amendment and get approval from the voters at a statewide election. The 2020 statute allows private corporations to take Louisiana citizens’ property for a private industrial project — permanent CO₂ storage and carbon-credit sales — without voter approval. The Legislature never submitted a constitutional amendment to the people. Under long-standing Louisiana Supreme Court cases, any statute that conflicts with the Constitution is null and void.

Our lawsuit will ask a court to:

- Declare the 2020 law unconstitutional because it violates Article I, Section 4 and bypassed Article XIII, Section 1.
- Stop the Commissioner of Conservation and private storage operators from using these powers to take our land and pore space.
- Ensure that landowners receive full constitutional protection and due process.

If these powers stand, private corporations could condemn Louisiana property for their own gain under the label of “carbon sequestration,” turning our aquifers and subsurface into industrial

waste dumps. This case defends every landowner's constitutional rights and ensures that major changes to property rights happen only with the people's vote.

Join Us — or Face Them Alone

You can join us and fight them together, or you can fight them on your own when they show up with papers taking your land away. We are calling on every reader to stand with us, support our lawsuit, and help fund this fight.

Donate today at www.savemylouisiana.org to support the legal challenge and grassroots organizing. Your contribution powers the attorneys, expert witnesses, and community outreach needed to protect our property, water, and future.

This is not just a policy debate. It is a defense of our homes, our aquifers, and our constitutional rights. Join us, donate, and act now before Louisiana becomes Carbon Alley.

Section 15 — References (APA)

References (APA-style footnotes consolidated at end of book)

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